

Goalpara Tenancy (Emergency Provisions) Act, 1962

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State of Assam - Act

Goalpara Tenancy (Emergency Provisions) Act, 1962

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Goalpara Tenancy (Emergency Provisions) Act, 1962

Act 25 of 1962

Published on 11 September 1962

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Goalpara Tenancy (Emergency Provisions) Act, 1962

Assam Act

No. 25 of 1962

Last Updated 12th February, 2020

[As passed by the Assembly]

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An Act to extend the period of limitation under the Goalpara Tenancy Act, 1929

Preamble. - Whereas it was not practicable for the people to file suit for the decision of any dispute in respect of record-of-rights within the period of limitation;

And whereas it is now considered expedient to extend the said period of limitation in the manner hereinafter appearing ;

It is hereby enacted in the Thirteenth Year of the Republic of India as follows.

1.

Short title, extent and commencement.

(1)

This Act may be called the Goalpara Tenancy (Emergency provisions) Act, 1962.

(2)

It shall have the like extent as the Goalpara Tenancy Act, 1929.

(3)

It shall come into force at once and shall remain in force for four months.

2.

Extension of the period of limitation for the purpose of institution of suits under Section 103 of the Assam Act 1 of 1929

- Notwithstanding anything contained in sub-Section (1) of Section 103 of the Goalpara Tenancy Act, 1929, a suit under the said section may be filed within four months of the coming into force of this Act, even if the period of four month prescribed under the said section has expired and any suit so instituted shall be deemed to have been instituted within time.

3.

Savings.

- The expiry of this Act at the end of four months from the commencement thereof shall not affect-

(a)

the previous operation of, or anything duly done or suffered under this Act; or

(b)

any right, privilege, obligation or liability acquired, accrued or incurred under this Act; or

(c)

any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability as aforesaid ; and any such investigation, legal proceeding or remedy may be continued or enforced as if this Act has not expired.

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